

SENATE BILL 771

By Briggs

AN ACT to amend Tennessee Code Annotated, Title 67,
Chapter 5, relative to property tax appeals.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 67-5-1412(b)(2), is amended by deleting the subdivision and substituting instead the following:

(2) Notwithstanding subdivision (b)(1) or another law to the contrary, a taxpayer or owner may appeal the valuation of industrial and commercial real and tangible personal property to the local board of equalization, or directly to the state board of equalization. A direct appeal to the state board of equalization must be filed before August 1 of the tax year, and the taxpayer shall indicate that the appeal is a direct appeal to the state board of equalization.

SECTION 2. Tennessee Code Annotated, Section 67-5-1512(b)(3), is amended by deleting the subdivision and substituting instead the following:

(3) If the full tax due is paid, the city or county collecting official may decline to accept the disputed portion of tax. If a city or county collecting official declines to accept the disputed portion of tax in accordance with this subdivision (b)(3), then the official shall send a written notice to the taxpayer by registered or certified mail, with return receipt requested, that explains the reason for declining to accept the disputed portion of tax. If the city or county collecting official fails to send the required notice within seven (7) calendar days of the decline to accept the disputed portion of tax, then the official shall accept the disputed portion of tax tendered by the taxpayer. Any disputed portion of tax declined by the city or county collecting official is not delinquent for any purpose

while an appeal of the assessment is pending before the county or state boards of equalization.

SECTION 3. Tennessee Code Annotated, Section 67-5-1512(c), is amended by deleting the subsection and substituting instead the following:

(c) If the city or county collecting official declines to accept the disputed portion of the tax, then interest must not accrue on the disputed portion from the delinquency date until thirty (30) days after issuance of the final assessment certificate of the state board of equalization and until the undisputed portion is paid.

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.